

File No.: EXP202213280

RESOLUTION No.: R/00310/2023

Considering the complaint filed on October 24, 2022, before this Agency by A.A.A. (hereinafter the complainant), against VODAFONE ESPAÑA, S.A.U. (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF A80907397, and their request, as stated by the complainant, did not receive the legally established response. The complainant points out that they requested identifying data of the IPs assigned during the use of their services with their devices. They state that these were used to carry out various scams. They provide documentation related to the complaint filed before this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on January 24, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate. This entity submitted, in summary, the following allegations:

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On February 1 and February 8, 2023, allegations were received in which they state that they cannot attend to the complainant's request.

"...This request was received and attended to by my client, responding within the deadline, through communication sent by email indicating to the complainant how to obtain the information related to the IP address of their current connection through their router, as well as conveying the impossibility of providing the information related to the IP addresses corresponding to the dates requested by the complainant, due to the fact that such information was not available in Vodafone's systems..."

They provide an email sent to the complainant when they made the request and a letter sent once the complaint was made before this Agency explaining the impossibility of attending to the request.

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this

matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding their obligations, as well as to handle complaints filed by a data subject and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to prove that they had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the

interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the data controller provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." The right of access is a highly personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised their right of access to the IPs assigned during the use of their services with their devices, arguing that they had been used to commit fraud.

In response to this request, the responding party first briefly replies via email to inform them that they do not have that information, and later, with a letter explaining in detail the impossibility of providing the requested information.

Similarly, in the allegations submitted, they state that they cannot fully comply with the right on one hand, while on the other hand, they address it by referring to the active IPs.

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"...That my represented party was informed of a request for information on December 19, 2022, in which information was requested regarding identifying data of the Internet Protocol addresses (IPs) assigned in the use of their services with their devices. Given that the information requested by Mr. A.A.A. was not accessible to Vodafone as it did not retain a record of such information in its systems due to the expiration of the retention periods for such information and it being technically impossible to access it, my represented party proceeded to conduct a thorough analysis of the case and, in order to

comply with the request presented by this Agency, was able to provide the number of the IP that the claimant held at that time as fiber ***FIBRA.1 General. Although it is true that this internal investigation process involving information related to IPs required more time than expected, Vodafone did submit allegations to this Agency on February 1, 2023, as evidenced by the receipt attached as Document number 1...”

“...Consequently, as my represented party has submitted allegations in response to the first request for information in which it provides the data in its possession regarding the information related to the IP address, as well as the methodology to access such information at all times and autonomously, this party believes that it has adequately responded...”

After these responses, and based on the regulations of Law 25/2007 which determines as data to be retained, among others, “...the Internet Protocol address, whether dynamic or static, assigned by the Internet access provider to a communication, and the identification of the user or subscriber or registered user...” (art 3.1.c).2º.i)), but the obligation to retain ceases 12 months from the date on which the communication occurred (art. 5.1), therefore, once the dates have been analyzed, we consider that the right has been addressed, although a more complete explanation of the reasons why the requested information cannot be provided is lacking in the response given.

Based on the foregoing, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the right has been fully addressed by providing what was requested and reasonably denying what could no longer be provided, this claim is dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim presented by A.A.A. against VODAFONE ESPAÑA, S.A.U.

SECOND: TO NOTIFY this resolution to A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es